

9.	<i>City of Buena Park vs. Forsyth</i> 2026-01546372	<u><i>Please see the above notice regarding oral argument on June 25, 2026</i></u> Before the court is the continued hearing on the petition for appointment of receiver filed by petitioner City of Buena Park (Petitioner) regarding the real property located at 5832 Darlington Avenue, Buena Park, California 90621 (Property). For the reasons set forth below, the hearing is CONTINUED TO AUGUST 13, 2026, AT 2:00 P.M., IN DEPARTMENT C23. On April 30, 2026, this petition came on for hearing. The court continued the hearing to June 25, 2026, because there was no proof of service showing the petition and notice of hearing were served on respondent Richard L. Forsyth (Respondent) as required by Health and Safety Code section 17980.7, subdivision (c). On May 1, 2026, the court granted Petitioner's Renewed Ex Parte Application for Order Directing Service of Summons on Respondent. On May 12, 2026, Order Directing Service of Summons was signed by the court. (ROA 56.) On May 20, 2026, Petitioner filed an amended proof of service showing proper service of the petition and notice of hearing on Respondent by posting and mailing. However, the court's May 12, 2026 order directing service of summons also required the summons to be served by publication for four consecutive weeks. (ROA 56.) The proof of publication filed by Petitioner indicates the summons was published in the Buena Park/Anaheim Independent on May 22, 2026, May 29, 2026, June 5, 2026, and June 12, 2026. (ROA 62.) The time to file a written pleading in response to Petitioner's summons in this action is 10 days. (Health & Safety Code, § 17990.) Government Code section 6064, pertaining to publication of a summons, provides that "[t]he period of notice commences with the first day of publication and terminates at the end of the twenty-eighth day, including therein the first day." (Govt. Code, § 6064; see also Code Civ. Proc., § 415.50(c) ["Service of a summons [by publication] . . . is deemed complete as provided in Section 6064 of the Government Code"].) Here, based on the May 22, 2026 first day of publication, the period of notice terminated on June 18, 2026. Respondent thus has 10 days from June 18, 2026, or by June 28, 2026, to file a response to the petition. (Health & Safety Code, § 17990.) The hearing on June 25, 2026,
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		thus does not allow sufficient time for Respondent to respond to the petition. The court therefore will CONTINUE the hearing as stated above to ensure Respondent is given sufficient statutory notice. Counsel for Petitioner shall give notice of this ruling to all interested parties and file a proof of service thereof at least five court days prior to the hearing. Such notice shall be given both by mailing and posting at the property.
10.	Anderson vs. Nordstrom, Inc. 2025-01534989	<u>Please see the above notice regarding oral argument on June 25, 2026</u> Before the court is the verified petition to preserve evidence filed by petitioner Yvonne Anderson (Anderson) on December 19, 2025. As more fully set forth below, the petition is DENIED. A Petition to preserve evidence under Code of Civil Procedure section 2035.010 et seq. must be served in the manner provided for service of summons. (Code Civ. Proc., § 2035.040, subd. (a).) No proof of service reflecting valid service, or any service whatsoever, on respondent Nordstrom, Inc. (Nordstrom), however, has been filed in this case. Moreover, a notice of hearing must be served on the expected adverse party at least 20 days before the date set for the hearing. (Code Civ. Proc., § 2035.040, subd. (c).) No such notice has been filed here, nor any proof of service reflecting notice. In addition, the Petition fails to comply with Code of Civil Procedure section 2035.030, subdivision (b)(2), as Anderson has not shown why she was presently unable to bring the intended action. The petition also appears to be inconsistent with Code of Civil Procedure section 2035.010, subdivision (b), which prohibits the use of section 2035.010, et seq. for purposes of either ascertaining the possible existence of a cause of action or defense to it, or of identifying those who might be made parties to an action not yet filed. Indeed, Nordstrom has expressly assured Anderson that it has preserved all surveillance footage. Based on the foregoing, the petition is DENIED. Anderson's counsel is ordered to serve notice of this ruling.
11.	Naama vs. Dubai Holdings, LLC	<u>Please see the above notice regarding oral argument on June 25, 2026</u>